

Court No. - 35

Case :- WRIT - C No. - 18284 of 2019

Petitioner :- Vijay Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bharati Sapru,J.

Hon'ble Vivek Varma,J.

Heard Sri Anil Kumar Srivastava, learned counsel for the petitioner, Sri Mahboob Ahmad, learned Counsel for the respondent nos. 2 to 4 and Sri Nimai Dass, learned Additional Chief Standing Counsel assisted by Sri B.P.S. Kachhawah, learned standing counsel for the respondents-State.

The petitioner is not disputing the amount as demanded by the department and he is ready and willing to deposit the amount in easy instalments.

Sri Mahboob Ahmad, learned counsel for the contesting respondent states that Section 6.4 of Electricity Supply Code, 2005 provides for payment of electricity dues in instalments, hence, he has no objection in accepting the amount in easy instalments.

Accordingly, this Court fixes four equal monthly instalments for the petitioner. The first instalment will become payable on 27th of June, 2019 and the rest three instalments will be paid by the petitioner on the 27th day of each succeeding month.

Insofar as the penalty, if any, is concerned, it is open to the petitioner to file an appeal before the

appropriate authority.

In case, the petitioner deposits the amount in instalments as stated above, no coercive measures may be taken against the petitioner.

Failure to deposit any instalment within time as stated above will leave it open to the respondents to proceed in accordance with law.

With the aforesaid observations, the writ petition stands **disposed of**. No costs.

Order Date :- 27.5.2019

Lbm/-